

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #2	CCRB Case #: 201901162	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 01/24/2019 6:48 PM	Location of Incident: § 87(2)(b)	Precinct: 67	18 Mo. SOL 7/24/2020	EO SOL 3/10/2021	
Date/Time CV Reported Thu, 02/07/2019 2:04 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/07/2019 2:04 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Kenny Kowlessar	24519	957748	067 PCT
2. SGT Robert Falcone	01052	948950	067 PCT
3. POM Daohui Tang	16165	955558	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Nayef Shahib	15332	961277	067 PCT
2. POM Jeffrey Thompson	17442	955577	067 PCT
3. POM Christopher Tirado	22495	955582	067 PCT
4. POM Vladimir Pena	06855	964698	067 PCT
5. POM Caner Sezer	25291	951236	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Kenny Kowlessar	Abuse: Police Officer Kenny Kowlessar forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
B.POM Daohui Tang	Abuse: Police Officer Daohui Tang forcibly removed § 87(2)(b) to the hospital	§ 87(2)(b)
C.POM Kenny Kowlessar	Discourtesy: Police Officer Kenny Kowlessar spoke discourteously to § 87(2)(b)	§ 87(2)(b)
D.POM Kenny Kowlessar	Force: Police Officer Kenny Kowlessar used a taser against § 87(2)(b)	§ 87(2)(b)
E.POM Kenny Kowlessar	Force: Police Officer Kenny Kowlessar used physical force against § 87(2)(b)	§ 87(2)(b)
F.SGT Robert Falcone	Abuse: Sergeant Robert Falcone threatened § 87(2)(b) with the use of force.	§ 87(2)(b)

Case Summary

On February 7, 2019, § 87(2)(b) filed this complaint with the CCRB via telephone.

At approximately 6:48 p.m. on January 24, 2019, § 87(2)(b)'s mother, § 87(2)(b) called 911 to report that § 87(2)(b) who was eventually diagnosed with schizoaffective disorder, required medical attention. Several officers from the 67th Precinct, including Police Officer Kenny Kowlessar and Police Officer Daohui Tang, responded to § 87(2)(b)'s home at § 87(2)(b) in Brooklyn. Police Officer Kowlessar and Police Officer Tang attempted to physically restrain § 87(2)(b) (**Allegations A and B – Abuse of Authority: Forcible removal to the hospital,** § 87(2)(g) Police Officer Kowlessar then told § 87(2)(b) “I will fucking Tase you” (**Allegation C – Discourtesy: Word,** § 87(2)(g) Police Officer Kowlessar then used his Taser against § 87(2)(b) (**Allegation D – Force: Nonlethal restraining device,** § 87(2)(g) Police Officer Kowlessar then forced § 87(2)(b) to the ground and handcuffed him (**Allegation E – Force: Physical force,** § 87(2)(g) Police Officer Kowlessar told § 87(2)(b) “Keep your fucking head down” (**Within Allegation C**). Two unidentified FDNY EMTs and a patrol supervisor, Sergeant Robert Falcone of the 67th Precinct, responded to the location after § 87(2)(b) was handcuffed. Sergeant Falcone told § 87(2)(b) “Get up and walk out, otherwise we’re going to drag you. I’m not picking you up. Get up we’re going to drag you. You want us to drag you?” (**Allegation G: Abuse of Authority – Threat of force,** § 87(2)(g) EMS then loaded § 87(2)(b) onto a stretcher and removed him to § 87(2)(b) as an emotionally disturbed person (EDP) (Board Review #01: AIDED Report).

Body-worn camera (BWC) footage was obtained from several of the responding officers. The footage is attached in IAs #40-48 (Board Review #02-10: BWC Footage) and summarized in IA #91 (Board Review #11: BWC Summary). Subclips taken from this footage has been attached in IAs #94-98 (Board Review #12-16: BWC Subclips). § 87(2)(b) also provided cell phone footage of the incident. It is attached in IA #9 (Board Review #17: Cell Phone Footage). The cell phone footage does not depict any of the allegations.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Kenny Kowlessar forcibly removed § 87(2)(b) to the hospital.

Allegation (B) Abuse of Authority: Police Officer Daohui Tang forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) was interviewed at the CCRB on February 11, 2019. § 87(2)(b) provided a telephone statement on March 11, 2019 (Board Review #18: Telephone Statement). Police Officer Kowlessar was interviewed at the CCRB on April 10, 2019. Sergeant Falcone was interviewed at the CCRB on April 16, 2019. He was then re-interviewed on June 20, 2019. Police Officer Tang was interviewed at the CCRB on May 10, 2019.

It is undisputed that § 87(2)(b) called 911 to obtain medical assistance for § 87(2)(b). Police Officer Kowlessar responded to their apartment along with several other officers. § 87(2)(b) told them that § 87(2)(b) required medical attention. The officers entered the apartment and spoke to § 87(2)(b) by his bedroom. Police Officer Kowlessar and Police Officer Tang then forcibly subdued § 87(2)(b) and placed him in handcuffs. He was later carried out of the apartment by EMS on a stretcher and transported to § 87(2)(b), where he was admitted to the psychiatric ward.

§ 87(2)(b) did not state whether he was suffering from any psychiatric issues at the time of the incident. He was not present during § 87(2)(b) conversation with the officers outside the apartment. § 87(2)(b) however, stated that § 87(2)(b) is mentally ill and had stopped showering, sleeping and taking his medication. She did not state what condition § 87(2)(b) had been diagnosed with.

Police Officer Kowlessar stated that § 87(2)(b) spoke to the officers outside the apartment and told them that § 87(2)(b) had stopped taking his medication and was acting in a violent manner. He did not recall her discussing § 87(2)(b)'s medical history or stating what condition her son had been diagnosed with. He saw that several other officers, including Police Officer Jeffrey Thompson and Police Officer Christopher Tirado, were already inside the apartment. They were standing in front of § 87(2)(b)'s bedroom. These two officers told Police Officer Kowlessar that § 87(2)(b) was “violent” and had shut himself into his bedroom. Because Police Officer Kowlessar was the only officer present who was carrying a Taser, he stood between the other officers and the bedroom door and waited. His intention was to contain § 87(2)(b) in the room until a supervisor arrived. He heard § 87(2)(b) shouting wordlessly through the bedroom door. Based on the information that he received from § 87(2)(b) and the other officers, Police Officer Kowlessar feared that § 87(2)(b) was violent and posed a threat to everyone’s safety. § 87(2)(b) then opened his door. Police Officer Kowlessar told § 87(2)(b) to show his hands. Police Officer Tang attempted to place handcuffs on § 87(2)(b). When § 87(2)(b) tried to go back into his bedroom, the two officers forcibly subdued him, handcuffed him and held him on the ground. They kept him onto the ground until EMS arrived to treat § 87(2)(b).

Police Officer Tang did not recall what information § 87(2)(b) or the other officers provided him before he approached § 87(2)(b)'s room inside the apartment. He did not recall if he heard any sounds coming from § 87(2)(b)'s bedroom before § 87(2)(b) came out. When § 87(2)(b) did exit the bedroom, he spat at the officers. Police Officer Tang stated that § 87(2)(b) also acted “violently,” but could not describe what he meant by this. As a result of this violent conduct, Police Officer Tang and Police Officer Kowlessar forcibly subdued § 87(2)(b). They held him down until they were relieved by EMS.

Police Officer Nayef Shahib of the 67th Precinct prepared an AIDED report to document § 87(2)(b)'s removal to the hospital. It states that § 87(2)(b) was transported to § 87(2)(b) as an EDP. He refused to comply with officers’ orders, offered physical resistance and acted in a violent manner (Board Review #01: AIDED Report).

§ 87(2)(b)'s medical records stated that § 87(2)(b) was hospitalized as an EDP after acting in an "irrational" and "aggressive" manner. When he arrived at § 87(2)(b), his physicians noted that he was hyperactive and appeared disheveled. He exhibited delusional thoughts and disorganized behavior and was treated for schizoaffective disorder (Privileged Documents: Medical Records).

A subclip from Police Officer Tang's BWC footage is attached in IA #94 (Board Review #12: BWC Subclip). It depicts the officers speaking to § 87(2)(b) before entering the apartment. It shows § 87(2)(b) telling the officers that § 87(2)(b) is schizophrenic, had recently been released from the hospital, was not taking his medication and had threatened to punch an individual because they kissed his sister.

A subclip from Police Officer Kowlessar's BWC footage is attached in IA #96 (Board Review #13: BWC Subclip). It shows Police Officer Kowlessar waiting outside § 87(2)(b)'s bedroom, holding his Taser. § 87(2)(b) then opens his door. At that point, Police Officer Kowlessar tells him to turn around and show his hands. Police Officer Tang approaches § 87(2)(b) and starts to put him in handcuffs.

NYPD Patrol Guide procedure 221-03 defines an emotionally disturbed person (EDP) as somebody who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. If the EDP's actions constitute an immediate threat of injury to himself or others, officers should take reasonable measures to terminate or prevent such behavior. If the EDP's actions do not constitute such a threat but the EDP agrees to leave the location voluntarily, officers may take him into custody. Otherwise, officers must isolate and contain the EDP until a patrol supervisor responds (Board Review #22: Legal Reference).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation (C) Discourtesy: Police Officer Kenny Kowlessar spoke discourteously to

§ 87(2)(b)
[REDACTED]

Neither § 87(2)(b) nor § 87(2)(b) alleged that any of the officers used profanity during this incident.

Police Officer Kowlessar stated that he and the other officers waited outside § 87(2)(b) § 87(2)(b)'s bedroom. Police Officer Kowlessar stood in front of the other officers because he alone was carrying a Taser at the time. § 87(2)(b) initially stayed in his bedroom with the door closed and shouted wordlessly from within. § 87(2)(b) suddenly exited the bedroom. The area was dimly lit, so Police Officer Kowlessar could not see § 87(2)(b) clearly. Police Officer Kowlessar told § 87(2)(b) to show his hands several times. He wanted § 87(2)(b) to show his hands because the bedroom was dark and he was concerned that there might be a weapon inside that M.r § 87(2)(b) could grab. § 87(2)(b) held his hands down by his lower body at the time. Police Officer Kowlessar warned § 87(2)(b) that he would use his Taser. He initially did not recall how he phrased this warning, but later stated that he told § 87(2)(b) "I will fucking Tase you." He issued this warning to gain § 87(2)(b)'s compliance.

Police Officer Kowlessar further stated that later in the incident, after § 87(2)(b) was handcuffed, § 87(2)(b) spat on Police Officer Kowlessar, striking his shirt and his neck. He pushed § 87(2)(b) down to the floor in order to prevent him from spitting again. He told § 87(2)(b) "Keep your fucking head down." He made this statement because he wanted to protect himself and the other officers from being spat on again.

Neither Police Officer Tang nor Sergeant Falcone recalled hearing Police Officer Kowlessar use profanity during the incident.

A subclip from Police Officer Kowlessar's BWC footage is attached in IA #96 (Board Review #13: BWC Subclip). It shows him standing in front of § 87(2)(b)'s bedroom. At 0:08 into the recording, he states, "Sir, show me your hands! Let me see your hands! Let me see your hands!" The camera turns towards the bedroom, showing that § 87(2)(b) standing in the doorway. Police Officer Kowlessar points his taser at § 87(2)(b). He states, "Come out with your hands up." § 87(2)(b) states, "No." Police Officer Kowlessar states, "Come out with your hands up. I will fucking Tase you. Come out with your hands up. Turn around."

Another subclip from Police Officer Kowlessar's BWC footage is attached in IA #98 (Board Review #15: BWC Subclip). It takes place after the first subclip. It shows § 87(2)(b) spitting on Police Officer Kowlessar after he being Tased. Police Officer Kowlessar responds by holding § 87(2)(b) face-down on the floor. He tells § 87(2)(b) "Keep your fucking head down. Keep your head down."

NYPD Patrol Guide procedure 200-02 states that officers must treat civilians with compassion, courtesy, professionalism and respect (Board Review #29: Legal Reference).

An officer may use profanity towards a civilian while attempting to gain control of a "dynamic situation." An officer may not use profanity when it is intended solely to insult or belittle a civilian. PD v. Pichardo, DAO-DCT Case #2015-15012 (Board Review #23: Legal Reference).

NYPD Patrol Guide procedure 221-08 states that officers are encouraged to warn individuals before using a Taser as a means of de-escalating potentially violent situations (Board Review #24: Legal Reference).

§ 87(2)(g)

Allegation (D) Force: Police Officer Kenny Kowlessar used a taser against § 87(2)(b)

It is undisputed that Police Officer Kowlessar and the other officers waited outside § 87(2)(b)'s closed bedroom door. § 87(2)(b) then exited his bedroom. Police Officer Kowlessar then fired his Taser once at § 87(2)(b). The Taser's darts lodged in § 87(2)(b)'s chest. § 87(2)(b) was eventually placed in handcuffs. He was later transported to § 87(2)(b), where the darts were removed.

§ 87(2)(b) stated that he was playing video games in his bedroom when the police arrived at his apartment. His bedroom door was closed. He heard an unidentified voice in the hallway telling him to come out. § 87(2)(b) initially did not respond to this command, but complied when the voice repeated it. § 87(2)(b) exited his bedroom and saw a group of several officers standing in the hallway, including Police Officer Kowlessar. § 87(2)(b) initially stated that the officers told him to put his hands up, but later stated that they either they told him to put his hands up or to walk towards them. § 87(2)(b) assumed that the officers were going to take him to the hospital. He was concerned that somebody might enter his bedroom and steal his belongings while he was hospitalized, so he turned away from Police Officer Kowlessar and closed his bedroom door. He then turned back towards the officers. Police Officer Kowlessar then fired a Taser at § 87(2)(b). He was standing approximately four feet away from § 87(2)(b) at the time. Both darts struck § 87(2)(b) in the chest. The ensuing shock from the Taser paralyzed § 87(2)(b)'s entire body, save for his right arm. He did not state how long the shock lasted for, but stated that it seemed to be escalating in intensity. § 87(2)(b) was concerned that the shock would cause permanent damage to him, so he pulled one of the darts out of his chest using his right hand. § 87(2)(b) then fell to the floor out of exhaustion.

§ 87(2)(b) did not witness the officers' interaction with § 87(2)(b) by his bedroom and did not see when Police Officer Kowlessar used his Taser. She did see that he had Taser darts attached to his body and was bleeding from his chest when he was removed from the apartment by EMS.

§ 87(2)(b)'s medical records stated that when EMS responded to his home, they found him lying on the floor in handcuffs. The police informed EMS that § 87(2)(b) had acted in an "irrational" and "aggressive" manner. At § 87(2)(b), a single Taser dart was removed from § 87(2)(b)'s chest (Privileged Documents: Medical Records).

Police Officer Kowlessar stated that when he first entered the apartment, § 87(2)(b) was shut into his bedroom and was shouting wordlessly. He and the other officers decided to treat § 87(2)(b) as a barricaded EDP. Because Police Officer Kowlessar was the only officer present with a Taser, he stood between § 87(2)(b)'s door and the other officers to protect them if § 87(2)(b) exited the bedroom with a weapon. A few seconds after he took position in front of the other officers, § 87(2)(b) exited the bedroom. The officers had not ordered him to leave the bedroom. § 87(2)(b)'s hands were held down by his lower body. Because the area was poorly lit, Police Officer Kowlessar could not tell if § 87(2)(b) was holding anything. Police Officer Kowlessar told § 87(2)(b) five or six times to show his hand. He also told § 87(2)(b) that he would be Tased if he did not comply with these commands. § 87(2)(b) turned around and placed his hands behind his back. Police Officer Tang walked up to § 87(2)(b) and placed a handcuff on one of his wrists. § 87(2)(b) then started walking back into his room, pulling Police Officer Tang along with him. Police Officer Kowlessar did not know how many steps § 87(2)(b) took, but estimated that he pulled Police Officer Tang about a foot's distance. He did not see if § 87(2)(b) reached into the room with his free hand at that time. Police Officer Kowlessar feared that § 87(2)(b) was going to pull Police Officer Tang into the bedroom. Because the room was dark, he feared that § 87(2)(b) might have had a weapon in the bedroom. Since he only had a few moments to intervene before Police Officer Tang was pulled into the bedroom, Police Officer Kowlessar decided to deploy his Taser. He decided against using his baton or OC spray because he was concerned that those implements, given the close quarters of the encounter, might accidentally harm Police Officer Tang. He verbally warned § 87(2)(b) that he was going to use the Taser. § 87(2)(b) turned back towards Police Officer Kowlessar. Police Officer Kowlessar then fired the Taser into the center of § 87(2)(b)'s chest. He was about three feet away from § 87(2)(b) at the time. Once § 87(2)(b) was Tased, he fell face-down to the floor. Police Officer Tang then applied the handcuffs to § 87(2)(b)'s other wrist.

Police Officer Tang did not recall what § 87(2)(b) was doing before he emerged from his bedroom. When § 87(2)(b) did emerge, he started spitting at officers. Police Officer Tang did not recall if § 87(2)(b)'s saliva struck anybody. He did not recall where § 87(2)(b) was holding his hands. He did not recall if officers gave any verbal commands to § 87(2)(b). Police Officer Tang moved to handcuff § 87(2)(b). Another officer tried to assist him, but Police Officer Tang did not recall who this officer was. Police Officer Tang did not recall if § 87(2)(b) tried to re-enter the bedroom, reached for any items in the bedroom or pulled him towards the bedroom. At some point while Police Officer Tang was applying the handcuffs, Police Officer Kowlessar fired his Taser at § 87(2)(b). Police Officer Tang did not recall where the Taser's darts landed or if he was still touching § 87(2)(b) when the Taser was used. § 87(2)(b) ended up on the floor at some point after he was Tased, but Police Officer Tang did not recall how § 87(2)(b)

§ 87(2)(b) came to be in this position. He did not recall how § 87(2)(b) was positioned. He did not recall when he ultimately handcuffed § 87(2)(b).

Sergeant Falcone was not present at the apartment when Police Officer Kowlessar used his Taser.

Police Officer Kowlessar prepared a TRI report to document this incident. It identifies § 87(2)(b) as an EDP and states that he pushed and/or shoved an officer and refused to comply with officers' instructions. § 87(2)(b)'s actions did not cause injuries to any officers. In response to these actions, Police Officer Kowlessar used his Taser. He stated that he did so in defense of himself and another officer. Police Officer Kowlessar fired the Taser from approximately five feet away from § 87(2)(b) making contact with one dart. § 87(2)(b) continued to resist Police Officer Kowlessar after being Tased. He was not injured as a result of Police Officer Kowlessar's actions (Board Review #01: TRI Report).

The X-26 Taser Data Sheet for Police Officer Kowlessar's Taser states that it was triggered once at 6:59:50 p.m., discharging for five seconds. The Taser was not triggered again on January 24, 2019 (Board Review #25: Taser Data Sheet).

A subclip from Police Officer Kowlessar's BWC footage is attached in IA #96 (Board Review #14: BWC Subclip). At the start of the subclip, Police Officer Kowlessar is standing in the apartment's hallway. At 0:07 into the recording, Police Officer Kowlessar's camera turns to the left, pointing away from the bedroom. Police Officer Kowlessar tells an unseen individual, identified later as § 87(2)(b) to show his hands. At 0:13 into the recording, the camera turns back towards § 87(2)(b) who is standing at his bedroom door with his hands raised up by his head. His Taser's targeting dot shines on § 87(2)(b)'s chest. Police Officer Kowlessar tells § 87(2)(b) to come out with his hands up. § 87(2)(b) replies, "No." Police Officer Kowlessar repeats the command, adding, "I will fucking Tase you." § 87(2)(b) walks towards Police Officer Kowlessar, exiting the bedroom. Police Officer Kowlessar tells him to turn around. § 87(2)(b) does so. The targeting dot can be seen on his back. Police Officer Tang then takes out handcuffs and walks up to § 87(2)(b). Police Officer Kowlessar states, "If you move, I will Tase you." The camera is pointed away from § 87(2)(b) when Police Officer Tang approaches him. At 0:37 into the recording, Police Officer Tang states, "Stop." Police Officer Kowlessar braces one of his arms against the wall and states, "I'm going to Tase you." A popping sound is heard, followed by a clicking sound. The camera shakes for several seconds. § 87(2)(b) is then seen lying face-down on the floor.

A subclip from Police Officer Tang's BWC footage is attached in IA #95 (Board Review #15: BWC Subclip). It depicts the same events from a different angle. It shows Police Officer Tang standing behind Police Officer Kowlessar in the hallway in front of § 87(2)(b)'s bedroom. Police Officer Kowlessar tells § 87(2)(b) to come out of his bedroom with his hands up. His body blocks the camera's view of § 87(2)(b). Police Officer Kowlessar then tells § 87(2)(b) "I will fucking Tase you. Come out with your hands up. Turn around. Turn around." At 0:15 into the recording, Police Officer Tang moves around Police Officer Kowlessar's right side. § 87(2)(b) is then visible standing in front of his bedroom with his back faced towards the officers. A red targeting dot shines on his back. Police

§ 87(2)(g)

§ 87(2)(g)

Allegation (E) Force: Police Officer Kenny Kowlessar used physical force against § 87(2)(b)

It is undisputed that after § 87(2)(b) was Tased, he fell to the floor, where Police Officer Kowlessar and Police Officer Tang handcuffed him. It is also undisputed that § 87(2)(b) spat at officers. § 87(2)(b) did not suffer any injuries during this incident beyond the Taser darts that hooked into his chest.

§ 87(2)(b) stated that after Police Officer Kowlessar Tased him, he fell to the floor. Police Officer Kowlessar then stood over § 87(2)(b)'s body. § 87(2)(b) then spat on Police Officer Kowlessar. He did not specify where the saliva made contact. Police Officer Kowlessar complained about being spat on, but did not otherwise react. Several officers then tried to lift § 87(2)(b) to his feet and walk him out of the apartment. § 87(2)(b) was unable to walk and collapsed back to the floor. He initially stated that the officers then grabbed his arms and legs and dragged him along the ground. He later stated, however, that he was dragged by EMTs, not the officers.

Police Officer Kowlessar stated that after he and Police Officer Tang handcuffed § 87(2)(b) on the floor, they lifted him up to his knees to allow him to breathe. § 87(2)(b) then spat on Police Officer Kowlessar, striking his shirt and neck. In order to prevent § 87(2)(b) from spitting again, Police Officer Kowlessar pushed § 87(2)(b) back to the floor and told him to put his head down. EMS arrived a short time later and applied a spit guard to § 87(2)(b)'s face. Police Officer Kowlessar then let go of § 87(2)(b) giving him to the EMTs' custody. He had no further contact with § 87(2)(b).

Police Officer Tang stated that § 87(2)(b) was spitting when he first exited his bedroom, before he was Tased. He did not recall if the saliva struck any officers. He made no mention of any officers using force against § 87(2)(b) after he was Tased.

Sergeant Falcone was not present at the time of this allegation.

Police Officer Kowlessar prepared a TRI report to document this incident. It identifies § 87(2)(b) as an EDP and states that he pushed and/or shoved an officer and refused to comply with officers' instructions. § 87(2)(b)'s actions did not cause injuries to any officers. In response to these actions, Police Officer Kowlessar used his Taser. No other force is indicated on the report. § 87(2)(b) was not injured as a result of Police Officer Kowlessar's actions (Board Review #01: TRI Report).

A subclip from Police Officer Kowlessar's BWC footage has been attached in IA #98 (Board Review #15: BWC Subclip). It shows him standing next to § 87(2)(b) who is kneeling in the hallway outside his bedroom. § 87(2)(b) complains that Police Officer Kowlessar used a Taser on him. He then spits towards Police Officer Kowlessar. The video does not show if the saliva strikes Police Officer Kowlessar. The video then shakes for a few seconds before showing Police Officer Kowlessar holding § 87(2)(b) face-down on the floor. Police

Officer Kowlessar's right hand is on the back of § 87(2)(b)'s head. He tells § 87(2)(b) "Keep your fucking head down. Keep your head down."

NYPD Patrol Guide procedure 221-01 states that officers may use physical force when it is reasonable to ensure the safety of a member of the service or a third person, to place a person in custody or to prevent a person's escape from custody. Officers may only use the reasonable amount of force necessary to gain control of a resisting subject (Board Review #26: Legal Reference).

§ 87(2)(g)
[REDACTED]

Allegation (F) Abuse of Authority: Sergeant Robert Falcone threatened § 87(2)(b) with the use of force.

It is undisputed that Sergeant Falcone arrived at the apartment after § 87(2)(b) was Tased and placed in handcuffs. § 87(2)(b) was lying on the floor in the hallway outside his bedroom at the time. The officers tried to lift § 87(2)(b) to his feet, but he refused to stand up and dropped his body back to the floor. He was eventually removed from the apartment by EMS, who attached him to a gurney and carried him out.

Neither § 87(2)(b) nor § 87(2)(b) made no mention of any officers threatening to use physical force against § 87(2)(b) if he did not walk out of the apartment.

Sergeant Falcone stated that § 87(2)(b) was lying on the floor when he first arrived. Several officers asked him to stand up and walk with them out of the apartment because it would be difficult to carry him out and because "they did not want to be too rough with him." § 87(2)(b) refused to get up. Sergeant Falcone did not recall how § 87(2)(b) phrased his refusal. Sergeant Falcone and the other officers attempted to lift § 87(2)(b) up, but were unable to move him since he refused to cooperate with them. Since § 87(2)(b) refused to cooperate, EMS had to lift him up and carry him out of the apartment. Sergeant Falcone did not recall threatening to drag § 87(2)(b) out of the apartment.

A subclip from Police Officer Tang's BWC footage is attached in IA #98 (Board Review #16: BWC Subclip). It shows § 87(2)(b) lying on his back in the hallway outside his apartment. Sergeant Falcone is standing over him. Sergeant Falcone tells him, "Dude, get up and walk out, otherwise we're going to drag you." § 87(2)(b) says, "Just pick me up." Sergeant Falcone replies, "I'm not picking you up. Get up." § 87(2)(b) states, "Legs, torso..." Sergeant Falcone states, "Your feet work. Get up, otherwise we're going to drag you."

After viewing the BWC footage, Sergeant Falcone stated that he told § 87(2)(b) that he would “drag” him because he was trying to motive § 87(2)(b) to stand up on his own power.

NYPD Patrol Guide procedure 221-01 states that officers may use physical force when it is reasonable to place a person in custody. Officers may only use the reasonable amount of force necessary to gain control of a resisting subject (Board Review #26: Legal Reference).

§ 87(2)(g)
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review #27: Civilian CCRB History).
- Police Officer Kowlessar has been a member of the service for four years and this is the first CCRB complaint to which he has been a subject.
- Police Officer Tang has been a member of the service for six years and this is the first CCRB complaint to which he has been a subject.
- Sergeant Falcone has been a member of the service for nine years and has been a subject in three previous CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A Notice of Claim request was submitted to the NYC Office of the Comptroller on August 22, 2019. The results will be included in the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date